



Publicis Groupe – LiveRamp

MN-60026

Phase 1 Determination

Acquisition may be put into effect

27 August 2026

1. Determination and statement of reasons

Notified acquisition	Publicis Groupe S.A. (Publicis)’s proposed acquisition of 100% of the share capital in LiveRamp Holdings, Inc. (LiveRamp) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	Publicis is a media and communications group that offers a wide range of services, including advertising, media planning and buying, data and analytics, digital transformation, and technology consulting services. Publicis provides data collaboration services, including data ingestion and unification capabilities, through Publicis’ Epsilon Data Management, LLC (Epsilon) (which it includes its Lotame division (Lotame)). LiveRamp provides a platform that supplies data collaboration services including data ingestion and unification and data clean room services. Data collaboration services enable companies to combine multiple sources of consumer data and connect them for use in digital advertising, such as ad targeting and measurement.
Overlap and relationship between the Parties	The Parties overlap horizontally in the supply of data collaboration services, and in particular, the supply of data ingestion and unification services. There is also a non-horizontal relationship between the Parties, as data collaboration services are an input into the supply of advertising services.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information obtained from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. Publicis and LiveRamp are not close competitors in the supply of data ingestion and unification services and Publicis does not

	supply data clean room services. • Publicis would be unlikely to have the ability and incentive to foreclose rival providers of advertising services. In considering Publicis' ability and incentive post-acquisition, the ACCC had regard to third party feedback that LiveRamp's strength in the supply of data ingestion and unification services globally meant Publicis could foreclose rivals by degrading or limiting access to its services, or using rivals' data to inform its own products and services. However, the ACCC considered the position of LiveRamp in Australia and found that there were alternative suppliers of data ingestion and unification services available to advertisers and advertising agencies in Australia. • Publicis would be unlikely to have the ability and incentive to foreclose rival advertising service providers, for example by denying or degrading their access to LiveRamp's data cleanroom services, as there are alternative suppliers of data clean room services in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act